SALES COWBOY

MARKETING SOLUTIONS • ENTERPRISE WEB & MOBILE ENGINEERING

Ama-wire Ishi-Uzo, Roadsafety Junction, Egbu Road, Owerri, Imo state
hello@salescowboy.com.ng • +234 810 493 3232 / +234 912 309 6853

AGREEMENT REF
SCM-AGR-2026-P54-1.5M

EFFECTIVE DATE
November 2, 2026

CONTRACT VALUE
₦2,000,000 NGN

BILATERAL CONTRACTUAL INSTRUMENT

SOFTWARE DEVELOPMENT AGREEMENT

Unified Logistics, Bank-Factored Haulage Transaction Engine, Consultant Licensing & Fleet Equipment Ecosystem

THIS SOFTWARE DEVELOPMENT AGREEMENT is made and entered into on this **2nd day of November, 2026**, by and between:

> **1. CLIENT: PROJECT54 ENTREPRENEURS**, a corporate entity registered under the laws of the Federal Republic of Nigeria, having its principal operational base in Lagos, Nigeria, represented herein by its Lead Executive / Managing Director, **Mr Lawson Israel** (hereinafter referred to as the "Client"); and
>
> **2. DEVELOPER: SALES COWBOY MARKETING SOLUTIONS**, having its principal office at Ama-wire Ishi-Uzo, Roadsafety Junction, Egbu Road, Owerri, Imo state, represented herein by its Lead Technical Director, **Clinton Chukwunyere** (hereinafter referred to as the "Developer").

WHEREAS, the Developer is an enterprise digital engineering firm specializing in high-concurrency transactional portals, dispatch architectures, escrow financial ledgers, and automated state-machine countdown engines; and the Client desires to retain the Developer to design, engineer, test, and deploy an enterprise logistics, haulage factoring, and fleet leasing ecosystem pursuant to the terms herein.

1. SCOPE OF WORK & SYSTEM MODULES

1.1 The Client hereby engages the Developer to design, develop, test, and deploy the Platform across eight (8) core functional modules as detailed in Schedule A:

- **Module 1: Consultant Onboarding & Quota Desk:** Paid consultant licensing with Paystack/Moniepoint activation checkout, closed-loop referral system (contractors and transporters register exclusively via unique consultant invite links), dynamic quota caps, and automated commission routing on trips, leases, and vehicle sales into consultant wallets.
- **Module 2: Contractor & Job Dispatch Hub:** Structured haulage manifests with geofenced loading/offloading coordinates, vehicle specifications, tonnage, and GIT insurance verification; real-time capacity decrementing countdown logic as transporters commit trucks; and automated 24-hour Expression of Interest (EOI) expiration timers.
- **Module 3: Transporter Fleet Vault & 48-Hour Gate-In Clock:**
  • *Fleet Asset Onboarding:* Transporter profile logging plate numbers, mandatory 360-degree truck walk-around video proof uploads, driver licenses, proofs of ownership, and bank accounts (NUBAN).
  • *Automated 48-Hour Gate-In Depletion Clock:* Upon contractor acceptance of a truck commitment, an immutable 48-hour countdown state machine activates with real-time UI countdown badges and alerts (T-24h, T-12h, T-2h). If the allocated vehicle fails to arrive at the designated loading depot and verify gate-in (via 150m GPS geofencing, driver QR scan, or digital gate sign-in) before the 48-hour clock reaches 00:00:00, the allocation automatically revokes without penalty to the contractor, returning capacity back to the open dispatch marketplace, while applying a reliability strike to the defaulting transporter.
  • *Dual-Stage Waybill Verification:* Stage 1 (Loading Waybill) verification with weighbridge receipt triggering initial mobilization advance; Stage 2 (Proof of Offloading / e-POD) verified delivery sign-off triggering the automated multi-way balance settlement.
- **Module 4: Secure In-App Chat & Anti-Circumvention Engine (Disintermediation Shield):**
  • *Transaction-Bound Messaging:* Dedicated in-app operational messaging between contractors and assigned truckers/transporters for dock loading updates, ETA, and directions.
  • *Automated Contact Redaction (AI & Regex Filter):* Automated pattern-matching engine detecting, redacting, or blocking personal telephone numbers (Nigerian formats: 080, 081, 070, 090, 091, +234, spelled-out digits), personal emails, WhatsApp links, bank accounts (NUBAN), and external URLs.
  • *Disintermediation Protection:* Enforces 100% platform retention by stopping truckers and contractors from cutting out the platform and dealing directly, with real-time compliance alert logging on the Master Admin desk.
- **Module 5: Accredited GIT Insurance Underwriting & Claims Desk:**
  • *Insurer Institutional Onboarding:* Dedicated institutional portals for accredited insurance underwriters (Leadway, AIICO, Cornerstone, NEM) to configure risk matrices and issue digital trip policies.
  • *Instant Digital Trip Binders:* Automated insurance certificates bound to each manifest before truck dispatch, with automated premium deduction at source via split settlement.
  • *Digital Incident Claims Vault:* Underwriters audit pre-trip 360-degree inspection videos, weighbridge receipts, and verified waybills for rapid, dispute-free claim reconciliation.
- **Module 6: Bank & Institutional Financing (Factoring) Desk:** Contractor-to-Bank financing invitations governed by an automated 5-day expiry state machine (strictly capped at one resend); secure financier underwriting desk granting accredited banks direct audit access to verified loading and offload waybill documents to authorize milestone disbursements; and automated multi-way split deductions (Transporter Payout, Platform Service Fee, GIT Insurance Premium, Consultant Commission).
- **Module 7: Heavy Equipment Leasing Engine:** Full 14-step haulage workflow tailored for industrial machinery (cranes, excavators, forklifts, lowbeds, barges) incorporating mandatory 360-degree video inspection uploads, lease duration agreements, caution deposit escrow, and maintenance sign-offs.
- **Module 8: Automobile & Heavy-Duty E-Commerce Marketplace:** B2B classified catalog for prime movers, flatbeds, tippers, and genuine truck components backed by inspection-based escrow settlement that releases merchant funds only upon formal buyer physical delivery sign-off.

2. TOTAL DEVELOPMENT INVESTMENT & PAYMENT SCHEDULE

2.1 **Total Contract Price:** The total professional fee for the complete development, testing, staging, and launch of the Platform is **Two Million Naira Only (₦2,000,000)**.

2.2 **Milestone Payment Schedule:**

MILESTONE 1 (37.5%)	MILESTONE 2 (25%)	MILESTONE 3 (37.5%)
₦750,000	**₦500,000**	**₦750,000**
Initial Mobilization Deposit upon contract signing (Architecture, DB Schemas, Consultant Licensing & Multi-Portal UI/UX Layouts — Weeks 1–2).	Deployment Milestone payable upon successful mobile app build upload and live deployment on Google Play and Apple App Store (Weeks 3–4).	Post-Launch Operational Validation payable after three (3) months of verified functional operational use post live app stores deployment.

Official Remittance Bank Details:
Bank: GUARANTY TRUST BANK (GTBANK) • Account Name: SALES COWBOY MARKETING SOLUTIONS
Account Number: **3006086291**

2.3 **Project Delivery Timeline:** The total delivery roadmap is **four (4) weeks (twenty-eight [28] calendar days)** from the Effective Date, contingent upon timely client feedback, document approvals, and milestone settlements.

3. APP RUNNING FEES & THIRD-PARTY INFRASTRUCTURE

3.1 The Client is solely responsible for funding recurring third-party cloud infrastructure required to operate the Platform, estimated at:

- **Railway Cloud (API, Redis Queues, PostgreSQL DB & Storage Bucket):** ~$10 – $20 / month (handles backend API, workers, cron timers, managed DB, and high-volume video proof & document storage bucket);
- **Automated SMS & OTP Dispatch (Termii):** Pay-as-you-go (~₦5 per notification / alert);
- **Payment Processing (Paystack / Moniepoint):** Standard 1.5% fee capped at ₦2,000 per local transaction;
- **App Store Registration:** Google Play Console ($25 one-time), Apple Developer Program ($99/year).

4. COMPLETE INTELLECTUAL PROPERTY OWNERSHIP

4.1 The Client shall own 100% complete, exclusive, and unencumbered Intellectual Property (IP) rights in the Platform. Upon receipt of **full and final payment (₦2,000,000)**, all right, title, and interest in and to the Platform—including all custom source code, frontend and backend architectures, database schemas, API interfaces, state-machine timer algorithms, UI/UX designs, visual assets, documentation, and technical deliverables—shall vest completely and exclusively in **PROJECT54 ENTREPRENEURS**.

4.2 The Developer waives and transfers all claims, proprietary rights, and title therein to the Client. Upon final milestone settlement, the Developer shall execute complete handover of all Git source code repositories, master administrative credentials, server deployment scripts, and database access keys directly to the Client, free of any ongoing licensing restrictions, royalties, or developer encumbrances.

5. OPERATIONAL, FACTORING & REGULATORY DISCLAIMERS

5.1 **Bank Factoring & Credit Underwriting:** The Platform provides technical software infrastructure (invitation state machines, document viewer desks, and automated multi-way split payment calculations) to facilitate freight financing. The Developer is not a financial institution, credit broker, or lending entity. All freight underwriting decisions, interest rates, factoring agreements, and credit recovery risks remain exclusively between participating financial institutions and the Client/Contractors.

5.2 **Goods-in-Transit (GIT) Insurance Underwriting:** The Platform integrates digital APIs and split payment mechanisms for accredited third-party insurance underwriters to issue policies and audit claims. The Developer is not an insurance underwriter or broker. Policy terms, risk assessment, coverage scopes, and claim settlements remain exclusively between participating insurance underwriters and the insured parties.

5.3 **Transporter Verification & Roadworthiness:** The Platform enforces digital compliance requirements (upload of driver licenses, hackney permits, GIT insurance certificates, and truck video proofs). The Client remains solely responsible for the physical inspection, mechanical roadworthiness, cargo security, and transit safety of contracted vehicles.

5.4 **In-App Messaging & Disintermediation Shield:** The Platform provides automated algorithmic regex filters to redact contact information and prevent direct off-platform transactions between truckers and contractors. The Client remains solely responsible for enforcing platform terms of service and penalizing offending participants.

5.5 **Statutory Tax & Financial Accounting:** The Platform automates calculation of Value Added Tax (VAT at 7.5%) and Withholding Tax (WHT at 5%) on brokerage and consultant fees. The Client remains solely responsible for obtaining and maintaining corporate haulage permits and timely filing of tax returns with government authorities (FIRS/NRS, SCUML).

6. ACCEPTANCE TESTING, WARRANTY & TECHNICAL SUPPORT

6.1 Upon staging milestone delivery, the Client shall have **seven (7) business days** to inspect the deliverables and report any reproducible software bugs deviating from Schedule A.

6.2 **12-Month Complimentary Technical Support & Bug-Fix Maintenance:** The Developer shall provide **twelve (12) months of complimentary post-launch technical support and maintenance** commencing from the live production launch date. This support encompasses continuous system monitoring, server uptime surveillance, database integrity checks, background worker queue health, diagnosing and resolving existing bugs or defects within Schedule A, and **necessary code adjustments or operational refactoring where an existing feature or workflow is not functioning effectively, is sub-optimal, or requires adjustment for higher operational efficiency (e.g., refining operational logic or substituting inefficient implementations with superior alternatives)**. This support **expressly excludes the design, engineering, or deployment of entirely new standalone features or architectural scope additions**, which shall be treated as new feature requests governed by separate written Change Requests (CRs).

6.3 **Post-Warranty Annual Support Retainer (₦800,000 / Year):** Following the conclusion of the initial twelve (12) months of complimentary technical support, the Client may retain the Developer for ongoing annual enterprise technical support, system health surveillance, database optimization, and bug-fix warranty at an agreed retainer fee of **Eight Hundred Thousand Naira Only (₦800,000 / year)**, payable in two equal installments: fifty percent (50% / ₦400,000) at the beginning of the year and fifty percent (50% / ₦400,000) at the end of the year.

7. LIMITATION OF LIABILITY & GOVERNING LAW

7.1 The Developer's maximum aggregate liability under this Agreement shall not exceed the total fees actually paid by the Client under this Agreement.

7.2 This Agreement shall be governed by and construed in accordance with the laws of the **Federal Republic of Nigeria**. Any dispute not resolved amicably within fourteen (14) days shall be referred to mediation or arbitration in accordance with the Arbitration and Mediation Act, 2023.

SIGNED FOR AND ON BEHALF OF CLIENT:

PROJECT54 ENTREPRENEURS

Mr Lawson Israel • Lead Executive / Managing Director

SIGNED FOR AND ON BEHALF OF DEVELOPER:

SALES COWBOY MARKETING SOLUTIONS

Clinton Chukwunyere • Lead Technical Director

Signature: _____

Date: November 2, 2026

Signature: _____

Date: November 2, 2026